

25STCV04422 25STCV04422

County: los-angeles

Division: Civil Law and Motion

Department: 307

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Case Number: 25STCV04422 Hearing Date: July 31, 2026 Dept: 307

13 TENTATIVE RULING 9:15 a.m., Friday, July 31, 2026

LINDSAY

CANTON v. CITY OF LOS ANGELES [25STCV04422]

MOTION

FOR JUDGMENT ON THE PLEADINGS AS TO THE 5TH THROUGH 7TH

CAUSES OF ACTION AND PLAINTIFF'S REQUEST FOR PUNITIVE DAMAGES by DEFENDANT CITY
OF LOS ANGELES

MEET AND

CONFER: OK Counsel

met and conferred telephonically in compliance with Code Civ. Proc. § 439 (Sahakian
Decl., ¶ 5.)

TIMELINE:

Habitability; also tort liability and UCL violations against the City

9/2004: Plaintiff Lindsay Canton ("Plaintiff")

becomes a tenant at the residential property located at 8163 Zitola Terrace,
Playa Del Rey, CA 90293 (the "Property") pursuant to a written lease agreement
with Defendant City of Los Angeles ("the City"). Plaintiff signs an updated
lease in 2008.

5/2023: Plaintiff notifies the City in writing

regarding a number of conditions at the Property that required repairs,
including a deck, a window, the garage doors, the gutters, as well as a termite
issue. Later the same month, Plaintiff also notifies the City of a water leak

and mold problem on the Property. The City failed to remediate these conditions.

Early 6/2023: Plaintiff orders a mold report for the Property. The report concludes that testing revealed the presence of mold on the Property. On 6/8/2023, Plaintiff informs the City of the results of the mold inspection and requests remediation of the mold and repairs of the leaking plumbing. On 6/13/2023, Plaintiff provides the City with a copy of the mold report, at the City's request. The City then advises Plaintiff to seek a private plumber.

6/20/2023: A private plumber comes to the Property to perform an assessment, as requested by the City. The plumber observes extensive plumbing damage, and Plaintiff sends the plumber's report to the City.

6/28/2023: The City sends a maintenance team to the Property. The team removes parts of the bathroom wall and ceiling, but failed to recover them, repair the leaking pipes, or resolve the mold growth.

Late 6/2023: Plaintiff informs the City that the leaks on the Property were not repaired, that the walls remained open, and the mold growth was unabated. The City does nothing to abate these conditions. Thereafter, Plaintiff discovers a rodent and cockroach infestation on the Property.

9/12/2023: The City sends inspection personnel to the Property to document the mold and leaks, as well as the Property's deck. The City still fails to take action to abate these conditions.

10/5/2023: Plaintiff's husband notifies the City by email that the inspector had arrived and describes the inspection. The email notes that the Property was still infested with rodents and roaches and that the City had taken no action to abate these conditions.

10/18/2025: The City performs a walk-through of the Property, and observes the open walls, exposed pipes, mold growth, and evidence of rodent and roach infestation. The City still fails to abate these conditions.

10/10/2024: Plaintiff presents a Government

Claim to the City, which the City rejects and denies on 11/25/2024.

2/14/2025: Plaintiff files the Complaint,
alleging causes of action for:

1. Violation of Civ. Code § 1940.2
(Covenant of Quiet Enjoyment)

2. Violation of Civ. Code § 1942.4

3. Breach of the Warranty of
Habitability

4. Violation of Civ. Code § 1941

5. Negligence

6. Intentional Infliction of
Emotional Distress ("IIED")

7. Violation of Unfair Business
Practices Act, Bus. & Prof. Code §§ 17200, et seq. (the "UCL")

6/13/2025:

The City files an Answer to the Complaint.

7/7/2026: The City files this Motion for
Judgment on the Pleadings, which is followed by Plaintiff's Opposition (7/20/2026)
and the City's Reply (7/24/2026).

TENTATIVE

RULING: MOTION FOR JUDGMENT ON THE PLEADINGS OF DEFENDANT CITY OF LOS ANGELES is
GRANTED with LEAVE TO AMEND in part and without leave to amend in part

A.

5th

and 6th Causes of Action: Negligence and IIED – GRANTED with LEAVE
TO AMEND

The City

argues that Plaintiff's tort claims fail to identify a statutory basis for the City's alleged liability, in violation of the Government Claims Act. "Under the Government Claims Act ... there is no common law tort liability for public entities in California; instead, such liability must be based on statute. [Citation.]" (Guzman v. County of Monterey (2009) 46 Cal.4th 887, 897.) Specifically, "Government Code section 815 states: 'Except as otherwise provided by statute: [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.' The Legislative Committee Comment to section 815 states: 'This section abolishes all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution....' [Citations.]" (Sheppard v. North Orange County Regional Occupational Program (2010) 191 Cal.App.4th 289, 314.)

Here,

Plaintiff's negligence claim alleges that the City owed a duty to Plaintiff arising out of their landlord-tenant relationship and breached that duty by failing to abate the inhabitable conditions on the Property. (Compl., ¶¶ 53-54.) Plaintiff's negligence claim is also premised on a theory of negligence per se, for the City's alleged violations of Health and Safety Code §§ 26103 and 26105 by exceeding the statutorily permissible mold exposure limits and posing a threat to Plaintiff's health. (Id. ¶¶ 55-56.) Plaintiff's IIED claim alleges that the City abused its position as Plaintiff's landlord by refusing to abate the inhabitable conditions on Plaintiff's property. (Id. ¶¶ 63-64.) The City argues that both of these causes of action, even to the extent that the negligence claim asserts a statutory theory of negligence per se, are merely common law torts.

Indeed, Plaintiff fails

to specifically plead any relevant statutory basis for civil liability against the City with respect to either her negligence claim or her IIED claim. Even to the extent that Plaintiff cites the Health and Safety Code in support of her negligence claim, she does not demonstrate that these statutes create a private right of action against a public entity or otherwise impose a mandatory duty upon the City. (See Mot., at p. 9.)

Plaintiff

responds that Gov. Code, § 835 ("section 835"), which is not cited in the

Complaint, permits the imposition of tort liability against a public entity where the Plaintiff's injury was caused by a dangerous condition on public property. Specifically, section 835 states: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and [...] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (Gov. Code, § 835, subd. (b).) The City concedes that section 835 allows a government entity to be held liable for a dangerous condition of public property. (Rep., at p. 3.) However, the City is also correct that Plaintiff does not identify this statute as a basis for liability on the face of her Complaint. Nor does Plaintiff provide any legal authority for her contention that section 835 can give rise to two separate tort claims, including both general negligence and the intentional tort of IIED. As it stands, the Complaint improperly purports to assert two common law tort theories against the City without citing the requisite statutory authority in the pleading.

Notably,

Plaintiff's relies on *Zuniga v. Housing Authority* (1995) 41 Cal.App.4th 82 (*Zuniga*) to argue that a "special relationship" between the City and tenants in public housing is sufficient to confer common law negligence liability on a public entity. Plaintiff's argument is unavailing, however, because the *Zuniga* decision was abrogated by the California Supreme Court's decision in *Zelig*. In *Zelig*, the high court suggested that section 835 is more applicable to a claim against a public entity based on the defective condition of public property, whereas the *Zuniga* decision involved hazards caused by third-party criminal conduct on the premises. (See *Zelig*, supra, 27 Cal.4th at p. 1139 ["But failure to transfer tenants for their protection and failure to evict tenants involved in criminal activities are matters far removed from any physical condition of the property."].)

Finally,

Plaintiff argues that the Complaint's references to Civil Code §§ 1941, 1941.1, and 1942.4 impose a "mandatory duty" on the City based on which liability can be premised pursuant to Gov. Code § 815.6. However, as the City points out, Plaintiff's claims under the Civil Code are asserted as distinct causes of

action from her common law tort claims. (Rep., at p. 4.) The City is not challenging these separate statutory causes of action on the pleadings. To the extent that Plaintiff relies on these sections of the Civil Code to establish a statutory basis for tort liability, Plaintiff's tort causes of action would merely duplicate Plaintiff's first, second, and fourth causes of action.

In sum,

the Court agrees with the City that Plaintiff has not overcome the heightened pleading standard applicable to claims asserted against a public entity. (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 ["Every fact material to the existence of [the public entity's] statutory liability must be pleaded with particularity."].) In the context of this heightened pleading standard, the City cannot be left to presume the unidentified statutory basis for Plaintiff's tort claims. Although Plaintiff cannot currently support her common law tort claims against the City, Plaintiff is free to amend her Complaint to reassert these claims as a single "premises liability" theory which expressly invokes the statutory authority of section 835. (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1132 (*Zelig*) ["the liability of public entities as property owners is set out specifically in Government Code section 835"].)

Therefore,

the City's motion for judgment on the pleadings as to the fifth and sixth causes of action is GRANTED with LEAVE TO AMEND.

B.

7th

Cause of Action: Violation of the UCL – GRANTED without leave to amend

The City

argues that Plaintiff cannot assert a cause of action for violation of the UCL against the City because there is no statutory authority to support such a claim against a public entity. (See Mot., at p. 10.) Plaintiff concedes this point in her opposition. (See Opp., at p. 11.) Accordingly, Plaintiff's UCL claim against the City must be dismissed.

C.

Request

for Punitive Damages – GRANTED without leave to amend

The City argues that Plaintiff's request for punitive damages is improper because punitive damages cannot be awarded against a public entity. (See Mot., at p. 11.) Plaintiff concedes this point in her opposition. (See Opp., at p. 12.) Accordingly, Plaintiff's request for punitive damages from the City must be stricken.

Defendant City of Los Angeles to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 7/20/26 at 2 p.m.